

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Noriega	Team: Team # 3	CCRB Case #: 201002999	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/05/2010 3:15 PM, Saturday, 03/06/2010 12:00 AM	Location of Incident: Fourth Avenue between 47th Street and 48th Street	Precinct: 72	18 Mo. SOL 9/5/2011	EO SOL 9/5/2011	
Date/Time CV Reported Mon, 03/08/2010 11:09 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 03/08/2010 11:09 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ronald Perez	04220	930943	072 PCT
2. POM Michael Damico	19063	932511	072 PCT
3. POM Justin Cracchiola	09588	925131	072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Frank Dileo	06263	918947	072 PCT
2. POM Sean Spencer	04482	929199	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Ronald Perez	Abuse: Sgt. Ronald Perez stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.SGT Ronald Perez	Abuse: Sgt. Ronald Perez drew his gun.	
C.SGT Ronald Perez	Abuse: Sgt. Ronald Perez frisked § 87(2)(b) and § 87(2)(b)	
D.SGT Ronald Perez	Abuse: Sgt. Ronald Perez searched § 87(2)(b) and § 87(2)(b)	
E.POM Justin Cracchiola	Discourtesy: PO Justin Cracchiola spoke obscenely to § 87(2)(b)	
F.SGT Ronald Perez	Abuse: Sgt. Ronald Perez strip-searched § 87(2)(b)	
G.SGT Ronald Perez	Abuse: Sgt. Ronald Perez authorized the search of a car in which § 87(2)(b) and § 87(2)(b) were occupants.	
H.SGT Ronald Perez	Abuse: Sgt. Ronald Perez threatened to arrest § 87(2)(b)	
I.POM Michael Damico	Abuse: PO Michael Damico issued a summons to § 87(2)(b)	
J.SGT Ronald Perez	Abuse: Sgt. Ronald Perez authorized the issuing of a summons to § 87(2)(b)	

Case Summary

§ 87(2)(b) and § 87(2)(b) filed this complaint in person at the CCRB on March 8, 2010.

On March 5, 2010, at approximately 3:15 p.m., on 4th Avenue and 47th Street in Brooklyn, § 87(2)(b) and § 87(2)(b) were pulled over by Sgt. Ronald Perez, PO Michael Damico, PO Justin Cracchiola, and other officers of the 72nd Precinct SNEU team. The following allegations emerged from the incident:

- **Allegation A – Abuse of Authority:** Sgt. Ronald Perez stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation B – Abuse of Authority:** Sgt. Ronald Perez drew his gun. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation C – Abuse of Authority:** Sgt. Ronald Perez frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g)
§ 87(2)(g)
- **Allegation D – Abuse of Authority:** Sgt. Ronald Perez searched § 87(2)(b) and § 87(2)(b)
- **Allegation E – Discourtesy:** PO Justin Cracchiola spoke obscenely to § 87(2)(b)
- **Allegation F – Abuse of Authority:** Sgt. Ronald Perez strip-searched § 87(2)(b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation G – Abuse of Authority:** Sgt. Ronald Perez authorized the search of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g)
§ 87(2)(g)
- **Allegation H – Abuse of Authority:** Sgt. Ronald Perez threatened to arrest § 87(2)(b)
- **Allegation I – Abuse of Authority:** PO Michael Damico issued a retaliatory summons to § 87(2)(b)
- **Allegation J – Abuse of Authority:** Sgt. Ronald Perez authorized the issuing of a retaliatory summons to § 87(2)(b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- § 87(2)(g), § 87(4-b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

Hispanic male, § 87(2)(b), 5'7", 173 lbs., bald, brown eyes

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on March 8, 2010. He provided a phone statement on September 23, 2010, and viewed photographs at the CCRB on December 15, 2010. [Encl. C 5-16.] § 87(2)(g)

On the afternoon of March 6, 2010 (the investigation subsequently determined the incident date to be March 5, 2010) § 87(2)(b) and § 87(2)(b) – who are close friends – drove a light blue, vintage Chevrolet pick-up truck belonging to their friend, § 87(2)(b), to an auto mechanic on 56th Street and 3rd Avenue in Brooklyn. § 87(2)(b) and § 87(2)(b) were doing § 87(2)(b) a favor and renewing the inspection on his truck. § 87(2)(b) who is a mechanic, had some of his work tools inside of a toolbox in the cabin of the truck. They left the mechanic at approximately 3:15 p.m., § 87(2)(b) driving and § 87(2)(b) in the passenger seat. Driving on 3rd Avenue and 55th Street, § 87(2)(b) saw a friend of his, § 87(2)(b), walking on the sidewalk. § 87(2)(b) exited the vehicle to say hello to § 87(2)(b) the two walked together for about two blocks, while § 87(2)(b) parked the truck. § 87(2)(b) then called § 87(2)(b) on his cell phone and told him to pick him up on 50th Street and § 87(2)(b).

Once § 87(2)(b) was back in the truck, they drove north on § 87(2)(b), intending to pick up § 87(2)(b) § 87(2)(b) son, § 87(2)(b) in the vicinity of § 87(2)(b) and § 87(2)(b). Between § 87(2)(b) and § 87(2)(b), they were pulled over by an unmarked Chevrolet Impala. § 87(2)(b) stated that he and § 87(2)(b) were both wearing their seat belts, and § 87(2)(b) had broken no traffic laws. One and possibly two more unmarked vehicles were also present, including one Crown Victoria. As soon as they were pulled over, § 87(2)(b) opened the glove compartment and retrieved the vehicle's paperwork. Two officers in plainclothes, identified by the investigation as Sgt. Ronald Perez and PO Michael Damico, approached the vehicle, Sgt. Perez on the passenger's side and PO Damico on the driver's side. Sgt. Perez approached with his gun drawn and pointed towards the ground.

§ 87(2)(b) identified both officers by shield numbers they provided later in the incident, and also identified Sgt. Perez by his last name; he described Sgt. Perez as a white, possibly Hispanic male (he recalled Sgt. Perez speaking Spanish during the incident), 5'9", thin build, about 40 years old, with shield number 4220; and PO Damico as a Hispanic male who was younger and slightly larger in build than Sgt. Perez, with shield number 19063. After Sgt. Perez's and PO Damico's arrival, about four other officers in plainclothes approached the vehicle. § 87(2)(b) did not recall their physical appearances in detail, but stated they were all either white or Hispanic. § 87(2)(b) did describe one, however, as a white male who was noticeably larger (i.e., more muscular) than most others; during his photo viewing, § 87(2)(b) identified PO Justin Cracchiola as this officer.

PO Damico asked § 87(2)(b) for the vehicle's paperwork, which § 87(2)(b) provided; he also asked PO Damico why they were being stopped. PO Damico replied that § 87(2)(b) had behaved suspiciously when he exited the vehicle; § 87(2)(b) and § 87(2)(b) explained that he had just been saying hello to a friend. Sgt. Perez asked § 87(2)(b) why he had reached into the glove box after they were pulled over; § 87(2)(b) stated that he had been retrieving the vehicle's paperwork. § 87(2)(b) also recalled PO

Cracchiola asking § 87(2)(b) why there were tools in the cabin of the truck; § 87(2)(b) replied that he was a mechanic and had been working that day.

After these interactions, Sgt. Perez opened the passenger's side door of the truck and, grabbing § 87(2)(b) by the shoulder, pulled him out of the vehicle. He then holstered his weapon and escorted § 87(2)(b) to the front of the truck, ordering him to place his hands on the hood. § 87(2)(b) saw § 87(2)(b) exiting the vehicle on PO Damico's orders at around this time. Sgt. Perez then began to frisk and search § 87(2)(b) patting down his outer clothing and inserting his hands in his pockets, removing his wallet, some personal papers, and his keys. During the search, PO Cracchiola asked § 87(2)(b) multiple questions about his activities and whether or not he was hiding anything in the car. § 87(2)(b) repeatedly stated that he was "clean." PO Cracchiola at one point said, "You're going to give me a fucking answer when I ask you." § 87(2)(b) said, "I don't got nothing to tell you," to which PO Cracchiola replied, "Oh, you wanna fuck with me? I'll fuck with you every day I see you."

Sgt. Perez then pulled down § 87(2)(b)'s pants. § 87(2)(b) was wearing gym shorts under his jeans; one of the officers pointed this out and stated that § 87(2)(b) must have drugs on his person. Sgt. Perez then pulled down the gym shorts, revealing § 87(2)(b)'s buttocks and genitalia. He then told § 87(2)(b) to pull his pants back up. § 87(2)(b) began loudly protesting the officers' actions, saying, "You violated my rights."

At some point while both § 87(2)(b) and § 87(2)(b) were standing outside the vehicle, § 87(2)(b)'s son, § 87(2)(b), approached the scene on foot and asked why his father was being stopped. Sgt. Perez said to § 87(2)(b) "Keep walking or I'll put you in jail." § 87(2)(b) walked away from the scene.

Sgt. Perez and PO Cracchiola then entered the cabin of the truck and began rifling through objects therein. One of the officers removed and inspected all the objects from the glove compartment. The officers also lifted the toolbox from the floor of the cabin, placed it on the seat, opened it, and rummaged through the tools inside. After the officers found no contraband in the truck, they ordered § 87(2)(b) and § 87(2)(b) back in the vehicle. PO Damico then approached § 87(2)(b)'s window and handed him a summons for failure to provide proof of insurance. § 87(2)(b) protested, saying that he had given PO Damico a valid insurance card; PO Damico replied that he was issuing the summons because of § 87(2)(b)'s "smart mouth." The officers then left the scene.

§ 87(2)(b) viewed officer photographs on December 15, 2010. He positively identified PO Damico as the officer who first approached the vehicle on the driver's side, but could not fully recall the rest of his involvement in the incident. § 87(2)(b) also positively identified PO Cracchiola as the officer who questioned him about the toolbox in the truck, and also as one of the officers who searched the vehicle; § 87(2)(b) also could fully recall the rest of PO Cracchiola's involvement in the incident.

Complainant/Victim: § 87(2)(b)

Hispanic male, § 87(2)(b), 5'8", 168 lbs., brown hair, blue eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on March 8, 2010, provided a phone statement on March 22, 2010, and viewed photo arrays on October 29, 2010 [Encl. C 17-30]. § 87(2)(g)

§ 87(2)(b) described the same sequence of events preceding the stop § 87(2)(b) emerging to speak to his friend, etc.). § 87(2)(b) also stated that both he and § 87(2)(b) were wearing their seat belts, and that he did not commit any traffic violations prior to the stop. § 87(2)(b) did not recall the appearance of the officer who approached § 87(2)(b)'s

side of the vehicle, but recalled that he had his gun drawn and pointed down. § 87(2)(b) described PO Damico – the officer who approached his side of the vehicle – as a white male, 5’9”-10”, 180-190 lbs., dark hair, 29-30 years old. § 87(2)(b) also stated that PO Damico specifically referred to § 87(2)(b) s having gotten out of the car, saying, “What were you doing on 3rd Avenue?” PO Damico also asked him whether he was hiding drugs or guns in the car. § 87(2)(b) recalled seeing an officer opening the passenger’s side door of the truck and pulling § 87(2)(b) out by the shoulder. § 87(2)(b) exited the vehicle himself when PO Damico ordered him to do so.

Once they were out of the car, § 87(2)(b) effectively lost track of the roles and appearances of the officers present; he stated that they were all white males with similar builds. However, he recalled speaking to an officer – identified by the investigation as Sgt. Perez – in Spanish, whom he described as a light-skinned Hispanic male, about 6’0”, 200 lbs., with black hair. § 87(2)(b) believed that this officer was distinct from the one who first approached the passenger’s side of the vehicle (whom he did not see well).

After § 87(2)(b) and § 87(2)(b) were out of the vehicle, PO Damico and other officers (whom § 87(2)(b) could not identify or describe) brought him to the back of the truck and began to ask him questions about his activities and the contents of the vehicle. From there, he saw as other officers brought § 87(2)(b) to the front of the truck. Two officers – including the one who first approached the passenger’s side of the car, and one other, whom § 87(2)(b) could not describe – then pulled down § 87(2)(b) s pants. § 87(2)(b) saw this happen through the rear and front windshields of the truck. However, PO Damico immediately distracted § 87(2)(b) by ordering him to stand with his back to the vehicle and continuing to ask him questions. § 87(2)(b) then heard § 87(2)(b) loudly protesting the officers’ actions.

Sgt. Perez then approached § 87(2)(b) in the area behind the vehicle and began to frisk and search him. Sgt. Perez patted down § 87(2)(b) s outer clothing and also inserted his hands into all of his pockets, where he found only keys and a flashlight, which he left inside the pockets. Sgt. Perez also lifted § 87(2)(b) s pant legs and checked inside the ankles of his socks. It was during this interaction that Sgt. Perez spoke to § 87(2)(b) in Spanish. It was also during this interaction that § 87(2)(b) approached the scene and asked, “What’s going on?” Sgt. Perez replied, “Move it before I arrest you.” Sgt. Perez then ordered § 87(2)(b) into the vehicle. § 87(2)(b) complied, but was soon ordered back out by a different officer.

§ 87(2)(b) stated that approximately three officers then entered and searched the cabin of the truck, but he was unable to identify or describe the officers that participated. § 87(2)(b) witnessed this search from outside and behind the vehicle, and could not see exactly what the officers were doing with their hands; however, he recalled seeing one officer lift his jacket, which was on the seat, and rummage through the pockets. When the search was concluded, § 87(2)(b) and § 87(2)(b) were both ordered back inside the truck. PO Damico then returned to the driver’s window and handed § 87(2)(b) a summons for operating an uninsured vehicle. § 87(2)(b) had provided PO Damico with the truck’s insurance card, and attempted to point this out to PO Damico; however, PO Damico replied, “I don’t have time to check that right now.” § 87(2)(b) provided the CCRB with a copy of the vehicle’s current insurance card.) PO Damico also told § 87(2)(b) that he was getting the summons because of § 87(2)(b) s protests, and his claim that the officers had “violated [his] rights.” The officers then left the scene.

§ 87(2)(b) viewed officer photographs on October 29, 2010. He did not positively identify any of the officers pictured.

Victim: § 87(2)(b)

- *Hispanic male,* § 87(2)(b).

Phone Statement to CCRB

§ 87(2)(b) provided a phone statement on March 12, 2010 [Encl. C 31]. He agreed to provide an official statement, but subsequently lost contact with the undersigned investigator, failing to respond to five telephone calls and two letters between March 31, 2010 and May 26, 2010. As such, § 87(2)(b) did not provide a sworn statement to the CCRB.

In his phone statement, § 87(2)(b) stated that he was waiting at a friend's apartment near the corner of § 87(2)(b) and § 87(2)(b) to be picked up by his father, who was going to take him home. When § 87(2)(b) exited the building to wait to be picked up, he saw that his father had been stopped by about four police officers in plainclothes. When he exited the building, § 87(2)(b) and § 87(2)(b) were both standing outside the vehicle talking to officers. § 87(2)(b) walked towards his father, who was talking to an officer identified as Sgt. Perez (whom § 87(2)(b) described as a light-skinned male with brown hair in his mid-30s). § 87(2)(b) identified himself as § 87(2)(b)'s son, and asked Sgt. Perez what was happening. Sgt. Perez replied, "Stop. Either you walk, or you get arrested." § 87(2)(b) who was made very nervous by the situation, immediately walked away. He stated that he did not witness any other portions of the incident.

Witness: § 87(2)(b)

- *Hispanic male,* § 87(2)(b).

CCRB Testimony

§ 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on April 8, 2010 [Encl. C 32-35]. The undersigned located § 87(2)(b) by means of an open letter posted publicly in a neighborhood bakery. § 87(2)(b) does not know any of the complainants or victims in this case.

§ 87(2)(b) stated that he witnessed the incident from the front stoop of his home, located at § 87(2)(b), directly across the street from the incident location. § 87(2)(b) stated that he paid direct attention to the incident for only about half of its duration – he estimated that he was focused on the incident for a cumulative 5 minutes out of 10, in part because he was sporadically distracted (he did not consider the fact that officers had stopped a vehicle in the area remarkable) and in part because § 87(2)(b) is a busy thoroughfare and his view was intermittently obstructed by passing vehicles.

§ 87(2)(b) recalled seeing a single unmarked police car, containing two officers, pulling over a light-blue Chevrolet pick-up truck. He recalled the officers as one black male and one white male; he recalled the occupants of the truck as two white males. § 87(2)(b) stated that one officer approached each side of the vehicle and removed the occupant from inside. § 87(2)(b) recalled seeing both occupants of the vehicle being frisked and searched: he described seeing the officers – one per civilian – patting down their outer clothing, then inserting their hands into their pockets, without removing any items. § 87(2)(b) characterized this as a normal search, which he did not consider noteworthy. § 87(2)(b) stated that the passenger of the vehicle was then placed inside the police vehicle, where he remained until the end of the incident, while the driver remained standing outside the truck. After the passenger had been placed in the police vehicle, § 87(2)(b) saw one of the officers – he vaguely recalled it being

the black male officer – leaning into one of the doors of the truck cabin, pushing the backrest of the seat forward, and looking behind it. The passenger was then removed from the police vehicle, the civilians re-entered the truck, and both civilians and officers drove off. § 87(2)(b) did not recall seeing any officers draw their guns or pull either civilians’ pants down. § 87(2)(b) could not hear any conversation between civilians and officers.

Attempts to Contact Civilians

The undersigned investigator conducted field work at the incident location on March 23, 2010. The undersigned also sent letters and placed phone calls to numerous residences in the vicinity between April 1, 2010 and April 9, 2010. No additional witnesses were located.

NYPD Statements:

Subject Officer: SGT RONALD PEREZ

- *Hispanic male, § 87(2)(b) old, 6’3”, 200 lbs., brown hair, brown eyes*
- *SNEU supervisor, in plainclothes, in an unmarked, blue Crown Victoria with PO Dileo and PO Spencer, on a tour from 12:00 p.m. to 8:57 p.m.*

Memo Book

Sgt. Perez noted the incident in his memo book as follows: “1435: c/s § 87(2)(b) / Blue p/u [pick-up] truck / 1445: 96 x 1, 93Q X R / Sprint #§ 87(2)(b) by PO Damico.” [Encl. D 6-7].

CCRB Testimony

Sgt. Perez was interviewed at the CCRB on July 7, 2010 [Encl. D 8-10].

On March 5, 2010, at approximately 2:35 p.m., Sgt. Perez’s vehicle – which was operated by PO Dileo – pulled over the pickup truck containing § 87(2)(b) and § 87(2)(b) on § 87(2)(b) and § 87(2)(b). Sgt. Perez did not recall why the vehicle was pulled over, but was certain that it was his vehicle that executed the initial stop. He recalled that PO Damico and one other officer – identified as PO Cracchiola – were also present. Immediately after the truck had been pulled over, Sgt. Perez observed, from the front passenger seat of the vehicle, § 87(2)(b) reaching above his head with both hands and inserting an object into the space between the back of his seat and the rear interior wall of the truck’s cabin. Sgt. Perez was unable to distinguish any characteristics of this object other than the fact that it appeared to be dark in color (he speculated that it might have been a plastic bag, but could not articulate specific characteristics pointing to this conclusion). This observation led Sgt. Perez to suspect that § 87(2)(b) was concealing a weapon in the vehicle.

Sgt. Perez approached the passenger’s side of the vehicle; he could not recall who approached on the driver’s side. Neither Sgt. Perez nor any other officers drew their guns upon approaching the vehicle or at any other point in the incident. As soon as the officers reached the vehicle, they instructed § 87(2)(b) to shut off the vehicle, and he immediately complied. § 87(2)(b) began to loudly & agitatedly question the stop, saying such things as “Why are you stopping us? Why is this happening?” § 87(2)(b) did not do anything physically threatening or violent to accompany his verbally agitated behavior. Sgt. Perez did not recall observing any objects in plain view inside the cabin of the truck that raised his suspicion of § 87(2)(b) and § 87(2)(b).

Sgt. Perez ordered both civilians out of the vehicle. He then frisked § 87(2)(b) s waistband, pockets and ankles. Sgt. Perez stated that he frisked § 87(2)(b) for two reasons: the observation of § 87(2)(b) apparently hiding something behind his seat, and § 87(2)(b) s agitated behavior upon the officers’ approach, which, in combination, led Sgt. Perez to suspect that he may have been concealing a weapon. The frisk did not reveal any weapons. Sgt.

Perez did not insert his hands into any of § 87(2)(b)'s pockets, and neither he nor any other officers pulled down § 87(2)(b)'s pants at any point. Sgt. Perez did not specifically recall whether § 87(2)(b) was also frisked, but assumed that he was frisked by other officers.

Sgt. Perez had no recollection of a third party approaching the scene on foot, and stated that neither he nor any other officers threatened to arrest any individuals during the course of the incident.

After § 87(2)(b) and § 87(2)(b) were out of the vehicle, Sgt. Perez and other officers escorted them to the rear of the truck. This was done in order to “occupy” the civilians while an officer checked the area of the truck where Sgt. Perez had observed § 87(2)(b) placing an object. Sgt. Perez stated that he did not personally conduct this search, but that it occurred under his orders. Sgt. Perez did not recall the identity of the officer who performed this search. Although he did not specifically recall seeing this happen, Sgt. Perez stated that the search would have necessitated an officer leaning into the passenger’s side door of the vehicle and pushing the backrest of the seat forward. Sgt. Perez did not recall whether a second officer also leaned into the vehicle through the driver’s door. Sgt. Perez stated that there were no factors other than those outlined above – his observation of § 87(2)(b) placing an object behind his seat, and § 87(2)(b)'s agitated behavior during the course of the stop – contributing to his decision to order a search of this area of the vehicle. Sgt. Perez stated that no additional search of the vehicle was conducted, e.g., no closed compartments were opened, no articles of clothing inside the truck were searched, etc. No weapons or contraband were recovered from the vehicle.

The incident concluded with PO Damico issuing § 87(2)(b) a summons for failing to produce valid registration for the vehicle. Sgt. Perez did not specify when PO Damico obtained the vehicle’s paperwork. Sgt. Perez recalled speaking to § 87(2)(b) in Spanish about the summons – explaining the reasons for its issuance, how to adjudicate it, etc. Sgt. Perez added that he was the only officer on the team who spoke Spanish. Sgt. Perez stated that the summons was not issued for any reason other than the offense listed, and stated that no officer ever told the civilians that the summons was being issued for § 87(2)(b)'s “smart mouth.” Sgt. Perez further stated that no officers ever demanded a “fucking answer” from or threatened to “fuck with” either § 87(2)(b) or § 87(2)(b).

Subject Officer: PO MICHAEL DAMICO

- *White male, § 87(2)(b) old, 5’10”, 205 lbs., brown hair, brown eyes*
- *SNEU, in plainclothes, in an unmarked black Impala operated by PO Cracchiola, on a tour from 12:00 p.m. to 8:35 p.m.*

Memo Book

PO Damico noted the incident in his memo book as follows: “1435: Car stop § 87(2)(b) / 1445: 96x1, 93Q # § 87(2)(b) [Encl. D 1-2].

CCRB Testimony

PO Damico was interviewed at the CCRB on June 10, 2010 [Encl. D 4-5]. § 87(2)(g)

PO Damico stated that it was his vehicle – not Sgt. Perez’s – that pulled over § 87(2)(b) and § 87(2)(b). He further stated that the pickup truck was pulled over because the officers observed that § 87(2)(b) was not wearing a seat belt; PO Damico did not recall any details of this observation other than the fact that his own vehicle was in motion when the observation was made, and that the observation was made about a minute prior to the stop. PO Damico stated that he and PO Cracchiola were the only officers present at the beginning of the stop, and that they were the first to approach the stopped vehicle on foot. PO Damico did not mention observing § 87(2)(b).

§ 87(2)(b) or § 87(2)(b) hiding any objects in the vehicle prior to their approach.

PO Damico recalled approaching the passenger's side of the vehicle. Neither he nor PO Cracchiola had their guns drawn (no officers drew their guns at any point in the incident). As soon as PO Damico reached the passenger's side window of the truck, § 87(2)(b) began to agitatedly protest the stop. PO Damico explained that he had been stopped for not wearing a seat belt, but § 87(2)(b) continued to yell things like, "This is bullshit! There's no reason to stop me!" § 87(2)(b) did not do anything physically aggressive to accompany his verbal agitation.

Through the window of the truck, PO Damico saw, in plain view scattered throughout the floor and seat of the truck cabin, various work tools, including screw drivers, utility knives and other sharp objects. This, in conjunction with § 87(2)(b)'s agitated behavior, caused PO Damico to consider § 87(2)(b) potentially dangerous and to fear for his safety. For these reasons, he ordered § 87(2)(b) and § 87(2)(b) out of the vehicle. For these same reasons (the tools in the cabin of the truck and § 87(2)(b)'s behavior), PO Damico frisked § 87(2)(b)'s waistband and pants pockets for weapons, but did not feel any hard objects. PO Damico did not insert any hands into any of § 87(2)(b)'s pockets, and did not at any point pull § 87(2)(b)'s pants down (nor did any other officers). PO Damico stated that he may have also frisked § 87(2)(b) but did not specifically recall doing so.

Sgt. Perez and the remaining officers on the SNEU team arrived on the scene to assist PO Damico and PO Cracchiola once § 87(2)(b) and § 87(2)(b) were already standing outside of the truck. PO Damico stated that neither he nor any other officers at any point conducted a search of the interior of the vehicle.

PO Damico recalled that, once the civilians were out of the vehicle, an individual – identified as § 87(2)(b) – approached the scene and identified himself as a family member of either § 87(2)(b) or § 87(2)(b). Before § 87(2)(b) could further approach the scene, PO Damico ordered him to stop, saying, "Stay right there." § 87(2)(b) complied. Neither PO Damico nor any other officers threatened to arrest § 87(2)(b) at any point.

PO Damico obtained the vehicle's paperwork from § 87(2)(b). § 87(2)(b) did not provide him with documentation of vehicle insurance. For this reason, PO Damico issued § 87(2)(b) a summons for driving an uninsured vehicle; when he handed § 87(2)(b) the summons, he explained that he simply needed to mail in a copy of the insurance card and the summons would be dismissed. PO Damico stated that he did not issue § 87(2)(b) this summons for any other reason, and never stated that the issuance of the summons had to do with § 87(2)(b)'s behavior. PO Damico further stated that he exercised his discretion in choosing not to issue § 87(2)(b) a summons for not wearing a seat belt, in part due to what he perceived as § 87(2)(b)'s overreaction to the stop; he recalled trying to get § 87(2)(b) who remained agitated throughout the incident, to calm down by saying, "Listen, it's not that big a deal."

PO Damico stated that neither he nor any other officers spoke discourteously during the course of the incident, and specifically that no officers said, "Give me a fucking answer" or "I'll fuck with you every day I see you."

Subject Officer: PO JUSTIN CRACCHIOLA

- *White male, § 87(2)(b) old, 5'10", 220 lbs., brown hair, blue eyes.*
- *SNEU, in plainclothes, in an unmarked black Impala with PO Damico, on a tour from 12:00 p.m. to 8:35 p.m.*

Memo Book

PO Cracchiola documented the incident in his memo book as follows: "1435: car stop § 87(2)(b) / 1445: 96/93Q" [Encl. D 19-21]

CCRB Testimony

PO Cracchiola was interviewed at the CCRB on July 21, 2010 [Encl. D 22-23]. § 87(2)(g)

PO Cracchiola recalled that the incident began when he and PO Damico received a radio transmission from the rest of the SNEU team informing them that a vehicle stop was about to occur. PO Cracchiola and PO Damico arrived on the scene as the pickup truck containing § 87(2)(b) and § 87(2)(b) was just being pulled over; as such, PO Cracchiola did not know the reasons for the initial stop.

Throughout the duration of the incident, PO Cracchiola remained standing immediately outside his own vehicle, which was positioned approximately three car lengths behind the pickup truck. PO Damico and Sgt. Perez approached the pickup truck; PO Cracchiola did not recall which officer approached which side of the vehicle, and also did not recall which additional officers approached the truck and which stayed behind.

Soon after the stop began, an individual – identified as § 87(2)(b) – approached PO Cracchiola, identified himself as the son of one of the stopped individuals, and asked PO Cracchiola what was going on. PO Cracchiola replied that his father was probably getting a summons. § 87(2)(b) stood in PO Cracchiola's vicinity for approximately the next five minutes – the entire duration of the stop – and PO Cracchiola focused his attention on him, primarily to ensure that he did not attempt to further approach the scene and possibly interfere with the stop. PO Cracchiola at no point threatened to arrest § 87(2)(b).

Due to the above, PO Cracchiola was not able to observe many details of the stop. However, he recalled that § 87(2)(b) and § 87(2)(b) both stepped out of the vehicle, and stood outside speaking to officers for some time. PO Cracchiola did not see any officers drawing their firearms at any point, nor did he see any officers frisking or searching either § 87(2)(b) or § 87(2)(b). PO Cracchiola stated that the interaction between the civilians and the officers appeared calm and normal; he did not hear any yelling and did not witness anything out of the ordinary. PO Cracchiola could not hear the content of the conversation, and as such did not know whether any officers used profanity in interacting with the civilians. PO Cracchiola did not see any officers pulling down § 87(2)(b)'s pants, and did not see any officers entering or otherwise searching the pickup truck. PO Cracchiola did not know how the incident ended, i.e., whether any summonses were issued.

Witness Officer: PO FRANK DILEO

- *White male, § 87(2)(b) old, 5'11", 250 lbs., blonde hair, blue eyes.*
- *SNEU, in plainclothes, operating an unmarked blue Crown Victoria with PO Spencer and Sgt. Perez, on a tour from 12:00 p.m. to 8:35 p.m.*

Memo Book

PO Dileo documented the incident in his memo book as follows: "1435 Car stop § 87(2)(b) / 1445 96, 93Q" [Encl. D 11].

CCRB Testimony

PO Dileo was interviewed at the CCRB on July 27, 2010 [Encl. D 12-13]. § 87(2)(g)

PO Dileo recalled that he and the officers in his vehicle received a radio transmission from PO Damico informing him that he was executing a car stop. When PO Dileo arrived on the scene, PO Damico had already stopped the pickup truck containing § 87(2)(b) and § 87(2)(b) and had approached the passenger's side to speak to § 87(2)(b). PO Dileo stated that he was

later told by PO Damico that he had pulled over the vehicle because § 87(2)(b) had not been wearing his seat belt.

When they arrived on the scene, PO Dileo approached the driver's side of the truck, and Sgt. Perez approached the passenger's side. Neither officer drew his firearm. Upon reaching the truck, PO Dileo saw several work tools – a hammer, screwdrivers, etc. – scattered in plain view throughout the floor and the seat of the cabin. In order to remove § 87(2)(b) and § 87(2)(b) from reach of these potentially dangerous items, the officers ordered them out of the vehicle, and both complied. PO Dileo then interacted with § 87(2)(b) on the driver's side of the truck for the remainder of the incident. He obtained the vehicle's paperwork from § 87(2)(b) and verified that all the papers – including the vehicle insurance – were in order. He explained the reason for the stop to § 87(2)(b) and returned the paperwork. PO Dileo did not frisk, search, or otherwise make physical contact with § 87(2)(b) during this interaction, nor did he use any profanity.

While PO Dileo was interacting with § 87(2)(b) Sgt. Perez and PO Damico interacted with § 87(2)(b) on the passenger's side of the vehicle. PO Dileo was not able to hear or see any aspects of their interaction due to the fact that the pickup truck was between them; as such, PO Dileo did not know whether § 87(2)(b) was frisked or searched. PO Dileo did not hear any yelling or cursing or other remarkable noises from the passenger's side of the pickup. PO Dileo stated that neither he nor any other officers ever entered or otherwise searched the truck.

As indicated above, PO Dileo recalled § 87(2)(b) presenting complete paperwork for the vehicle, and as such did not recall § 87(2)(b) receiving a summons for operating an uninsured vehicle; instead, PO Dileo recalled the incident ending with § 87(2)(b) being issued a summons for failing to wear his seatbelt.

Witness Officer: PO SEAN SPENCER

- *White male, § 87(2)(b) old, 5'8", 190 lbs., brown hair, brown eyes*
- *SNEU, in plainclothes, in an unmarked, blue Crown Victoria with Sgt. Perez and PO Dileo, on a tour from 12:00 p.m. until 8:35 p.m.*

Memo Book

PO Spencer did not document this incident in his memo book [Encl. D 14-16].

CCRB Testimony

PO Spencer was interviewed at the CCRB on August 3, 2010 [Encl. D 17-18]. § 87(2)(g)

PO Spencer stated that PO Damico's vehicle pulled over § 87(2)(b) and § 87(2)(b). He did not know why the vehicle was pulled over. PO Spencer did not recall at which point his vehicle became involved in the stop, but stated that he did not recall observing any movement on the part of § 87(2)(b) or § 87(2)(b) while they were inside their vehicle, nor could he recall any conversation with Sgt. Perez regarding any such movements.

Sgt. Perez approached the passenger's side of the vehicle, and PO Dileo approached the driver's side. PO Spencer stationed himself approximately five feet behind PO Dileo. No officers drew their guns at any point in the incident. PO Spencer recalled both § 87(2)(b) and § 87(2)(b) exiting the vehicle and standing with their hands on top of the car; for this reason, he believed that both were frisked, but had no specific recollection of witnessing said frisks. PO Spencer did not see any officers searching either civilian, and did not see any officers pulling § 87(2)(b)'s pants down.

PO Spencer recalled that § 87(2)(b) did not speak English well, so Sgt. Perez spoke to him in Spanish. Sgt. Perez obtained § 87(2)(b)'s ID and handed it to PO Spencer, who took

it back to their vehicle to run it for warrants. This took approximately five minutes, during which the other officers stood outside the vehicle interacting with § 87(2)(b) and § 87(2)(b) as he was otherwise occupied, PO Spencer could not hear or entirely see these interactions. When PO Spencer emerged from the vehicle, he saw an individual, identified as § 87(2)(b) approaching the scene and speaking to an officer (he could not recall which); PO Spencer could not hear this conversation. The incident ended with PO Damico issuing § 87(2)(b) a summons; PO Spencer could not recall what this summons was for.

PO Spencer did not see any officers leaning into or otherwise entering the vehicle, did not recall hearing any orders from Sgt. Perez to conduct a search of the vehicle, and did not recall any conversations with the sergeant regarding the possibility of there being weapons in the vehicle. PO Spencer did recall hearing PO Dileo mention, once the incident was concluded, that there were screwdrivers and other work tools on the center console of the vehicle. PO Spencer at no point heard any officers use any variation of the word “fuck” or use any other discourteous language.

Summons/Arrest for Incident and Disposition

The New York State Department of Motor Vehicles has no record of summons #

§ 87(2)(b)

Status of Civil Proceedings

As of February 3, 2011, neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York regarding this incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ [REDACTED]
[REDACTED]
■ [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- As of March 14, 2011, this is the first CCRB complaint filed by § 87(2)(b)
- As of March 14, 2011, § 87(2)(b) has filed the following CCRB complaints:

- § 87(2)(b) [REDACTED]
[REDACTED]
■ [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Subject Officer CCRB History

- Sgt. Ronald Perez has been a member of the service for 8 years and there are no substantiated CCRB allegations against him.
- PO Justin Cracchiola has been a member of the service for 10 years and the following CCRB allegations have been substantiated against him:
 - In case 200530450, a question and/or stop allegation; a refusal to provide name and shield number allegation; and a search of person allegation were substantiated against PO Cracchiola. The CCRB recommended charges and PO Cracchiola received instructions

- for all allegations.
- In case 200712858, a refusal to obtain medical treatment allegation was substantiated against PO Cracchiola. The CCRB recommended charges and PO Cracchiola received instructions.
 - PO Michael Damico has been a member of the service for 7 years and there are no substantiated CCRB allegations against him. [Encl. B 1-6]

Conclusion

Identification of Subject Officers and Pleading of Allegations

§ 87(2)(b) explicitly alleged the drawn gun, frisk, search and strip search, threat of arrest and vehicle search against Sgt. Perez. § 87(2)(b) in contrast, stated that he did not see the officer who first approached the passenger's side of the vehicle with his gun drawn, but believed him to be distinct from the officer who spoke to him in Spanish, and who frisked and searched him in the rear of the truck. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

During his photo viewing, § 87(2)(b) identified PO Cracchiola as the officer who questioned him about the toolbox inside the vehicle, and as one of the officers who searched the truck. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Ronald Perez stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants

According to Kamins (pp. 5-15, 2010 ed.) [Encl. A 1-2], “the stop of an automobile constitutes a seizure,” and in situations where a traffic infraction has not been observed, “an officer may stop a vehicle to investigate criminal activity when he has a *reasonable suspicion* that its occupants have been engaged, are presently engaged, or are about to engage in conduct in violation of the law.” As such, automobile stops conform to the standard of reasonable suspicion laid out in People v. Cantor, 36 N.Y.2d 106 (1975) [Encl. A 3-8]: “the quantum of knowledge to induce an ordinarily prudent and cautious man under the circumstances to believe criminal activity is at hand.” Also per Cantor, this “quantum of knowledge” must be established on the basis of “specific, articulable facts” (pp. 112-113).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED] as per Cantor, officers must articulate the source of reasonable suspicion underlying a stop; in the absence of such “specific, articulable facts,” a stop is unjustified. § 87(2)(g)

[REDACTED]

Allegation B – Abuse of Authority: Sgt. Ronald Perez drew his gun

§ 87(2)(b) and § 87(2)(b) alleged that Sgt. Perez approached the passenger’s side of the vehicle with his firearm drawn and pointed down at his side. Sgt. Perez denied drawing his gun at any point, as did all other officers on the scene. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation C – Abuse of Authority: Sgt. Ronald Perez frisked § 87(2)(b) and

§ 87(2)(b)

Sgt. Perez acknowledged that he frisked § 87(2)(b) and stated that, though he had no

_____.

§ 87(2)(g)

§ 87(2)(g)

[illegible]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[illegible]

§ 87(2)(b)

Allegation E – Discourtesy: PO Justin Cracchiola spoke obscenely to § 87(2)(b)

Allegation F – Abuse of Authority: Sgt. Ronald Perez strip-searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Sgt. Perez acknowledged issuing an order to one of his officers to search the area behind § 87(2)(b)'s seat, and stated that such a search would have required leaning into the cabin of the truck and pushing the backrest of the seat forward. Sgt. Perez further acknowledged that this took

place once § 87(2)(b) and § 87(2)(b) had been removed from the vehicle. According to People v. Hernandez, 238 A.D.2d 131 (1997) [Encl. A 28-29], if a vehicle's occupants are already outside the vehicle, a search is conducted once an officer "breach[es] the plane of the car doorway, i.e., the interior of the car" (p. 132). By this standard, the actions ordered by Sgt. Perez constituted a vehicle search.

According to People v. Branch, 259 A.D.2d 556 (1999) [Encl. A 26-27], the search of a vehicle requires "probable cause to believe that evidence of a crime, contraband, or a weapon [will] be found therein" (p. 557). § 87(2)(g)

§ 87(2)(b)

Allegation H – Abuse of Authority: Sgt. Ronald Perez threatened to arrest § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both alleged that Sgt. Perez, in telling § 87(2)(b) to leave the scene, threatened to arrest him. § 87(2)(g)

§ 87(2)(b) Sgt. Perez denied making such a threat, and all other officers denied hearing it. § 87(2)(g)

§ 87(2)(b)

Allegation I – Abuse of Authority: PO Michael Damico issued a retaliatory summons to

Allegation J – Abuse of Authority: Sgt. Ronal Perez authorized the issuing of a retaliatory summons to § 87(2)(b)

The complainants alleged that PO Damico knowingly issued § 87(2)(b) the uninsured vehicle summons despite the fact that § 87(2)(b) presented a valid insurance card, and that the summons was issued explicitly in response to § 87(2)(b)'s protests against the officers' actions. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(g) PO Dileo recalled obtaining complete paperwork for the vehicle from § 87(2)(b) including a valid insurance card. § 87(2)(g)

§ 87(2)(b) and PO Damico all agreed that it was PO Damico, not PO Dileo, who obtained the paperwork from § 87(2)(b) and ultimately issued the summons.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date